# Départ de Sentier Association

## 0. Language

English is not an official language of the Swiss Confederation. This translation is provided for information purposes only and has no legal force.

## 1. Name and Seat

An association within the meaning of Articles 60 et seq. of the Swiss Civil Code ("CC") is hereby created under the name "Départ de Sentier". It is politically and religiously independent.

The Association is created for an indefinite period of time.

## 2. Purpose

The Association is created to:

- Support open source software for sustainability assessment
- Organize conferences and events on open source software for sustainability assessment
- Promote public engagement and education on sustainability assessment, citizen science, data transparency, sustainability, and open science
- Support active citizen engagement in monitoring, interpreting, and managing personal energy and material use
- Facilitate scientific interchange on open science for sustainability assessment

The Association has no profit purposes. Membership in organs of the association is unpaid.

## 3. Means

In order to pursue the purpose of the Association, the Association has the following means:

- Membership fees
- Income from own events
- Subsidies
- Income from service agreements
- Donations and grants of all kinds

The membership fees are determined annually by the General Assembly. Honorary members and acting members of the Board are exempt from the membership fee.

The fiscal year corresponds to the calendar year.

## 4. Membership

Natural and legal persons who support the purpose of the Association can become members.

Persons who have made a special contribution to the Association may be awarded honorary membership by the General Assembly on the recommendation of the Board.

Applications for membership are to be addressed to the Board of Directors; the Board of Directors decides on admission.

## 5. Expiration of the membership

The membership expires

- for natural persons by resignation, exclusion, or death.
- for legal entities by resignation, exclusion, or dissolution of the legal entity person.

## 6. Withdrawal and exclusion

Resignation from the Association is possible at any time. The letter of resignation must be sent in writing to the Board at least 2 weeks before the ordinary General Assembly. The full membership fee must be paid for the year in question.

A member may be expelled from the Association at any time for violating the objectives of the Association.

The decision to exclude a member shall be made by the Board; the member may appeal the decision to the General Assembly.

If a member still owes the membership fee after being sent an overdue notice, they can be automatically excluded by the Board.

## 7. Organs of the association

The organs of the association are:

- the General Assembly
- the Board of Directors
- the Auditor(s)

## 8. The General Assembly

The highest body of the association is the General Assembly. An ordinary General Assembly is held annually.

Members are invited to the General Assembly 21 days in advance in writing, stating the agenda items. Invitations by e-mail are valid.

Proposals to the General Assembly must be submitted in writing to the Board of Directors no later than 7 days before the General Assembly.

The Board of Directors or 20 percent of the members may at any time request the convening of an extraordinary General Assembly, stating the purpose of the meeting. The meeting must be held no later than 6 weeks after receipt of the request.

The General Assembly is the supreme body of the Association. It has the following inalienable tasks and competences:

- Approval of the minutes of the last General Assembly
- Approval of the annual report of the Board
- Acceptance of the auditor's report and approval of the annual accounts
- Discharge of the Board of Directors
- Election of the Board of Directors as well as the Auditors
- Determination of the membership fees
- Approval of the annual budget
- Adoption of resolutions on the program of activities
- Adoption of resolutions on motions of the Board of Directors and the members
- Amendment of the statutes
- Decision on exclusion of members.
- Decision-making on the dissolution of the Association and the use of the liquidation proceeds

The Board may accept and use, outside the approved annual budget, earmarked third-party funds received after the annual budget has been approved, provided their purpose is compatible with the purpose of the Association. The Board shall inform the General Assembly thereof at the next ordinary General Assembly.

Any General Assembly duly convened shall constitute a quorum regardless of the number of members present.

Any member may be represented at the General Assembly by another member by written proxy. The proxy must be submitted to the Board before voting or elections begin. No member may hold more than two (2) proxies. Represented members are deemed present for the purposes of quorum and majority calculations.

Resolutions are passed by an absolute majority of the members present or represented.

Amendments to the statutes require the approval of a 2/3 majority of those entitled to vote who are present or represented.

General Assembly minutes shall be recorded and made publicly available.

The General Assembly can be held physically or online.

## 9. The Board of Directors

The Board of Directors consists of between 3 and 7 persons.

The term of office is 3 years. Re-election is possible.

The Board of Directors conducts the day-to-day business and represents the Association externally. It may delegate operational management, in whole or in part, to a management function or to individual employees; oversight and responsibility towards the General Assembly remain with the Board.

It issues regulations.

It can appoint working groups.

It can employ or commission persons for the achievement of the association's goals against appropriate compensation.

The Board of Directors has all competences which are not assigned to another body by law or according to these Articles of Association.

The board meets as often as business requires. Any member of the Board may request a meeting, stating the reasons.

Unless a member of the Board of Directors requests oral deliberation, resolutions may be passed by circular letter (including e-mail).

Board members shall recuse themselves from deliberation and decision-making on matters in which they, persons or organisations close to them have a personal or financial interest (in particular the award of contracts, employment relationships, or fees). Any recusal shall be recorded in the minutes.

The Board of Directors is in principle active on an honorary basis; it is entitled to reimbursement of effective expenses.

## 10. The Auditors

The General Assembly elects one or two persons as auditors, who check the accounts.

The auditors report and propose to the Board of Directors for the attention of the General Assembly.

The term of office is two years. Re-election is possible.

## 11. Authority to sign

The Board of Directors regulates signing authority, which is by collective signature of two.

## 12. Liability

Only the Association's assets are liable for the debts of the Association. Members of the Association bear no personal liability.

## 13. Dissolution of the Association

The dissolution of the Association may be resolved by an ordinary or extraordinary General Assembly with a majority of 80 percent of those entitled to vote who are present or represented.

In the event of dissolution of the Association, the assets of the Association shall be distributed to a tax-exempt organization pursuing the same or a similar purpose. The distribution of the Association's assets among the members is excluded.

## 14. Entry into force

These statutes were adopted at the founding assembly of 01.02.2022 and came into force on that date.

They have since been amended as follows; amendments to these statutes entered into force upon adoption by the General Assembly:

- General Assembly of 19.05.2023: amendment to Article 8
- Extraordinary General Assembly of 16.10.2025: amendment to Article 8
- General Assembly of 24.09.2026: amendments to Articles 8, 9, 10, 11 and 13

Date, place: 01.02.2022, 5223 Riniken

The Board:

Christopher L. Mutel

President

Tomás Navarrete Gutierrez

Vice President

Karin Treyer

Actuary

The amendments were adopted at the General Assembly of 24.09.2026.

Karin Treyer

Chair

Date, place: _____

Mélanie Douziech

Minute-taker

Date, place: _____